

The Court has a statutory “responsibility to eliminate delay in the progress and ultimate resolution of litigation, to assume and maintain control over the pace of litigation, to actively manage the processing of litigation from commencement to disposition, and to compel attorneys and litigants to prepare and resolve all litigation without delay, from the filing of the first document invoking court jurisdiction to final disposition of the action.” (Govt. Code, § 68607.) In fulfilling these responsibilities, the Court “shall...[a]dopt and utilize a firm, consistent policy against continuances, to the maximum extent possible and reasonable, in all stages of the litigation.” (*Id.* at subd. (g).) Therefore, a party moving for a continuance must show good cause requiring the continuance. (*Ibid.*)

“To ensure the prompt disposition of civil cases, the dates assigned for a trial are firm. All parties and their counsel must regard the date set for trial as certain.” (Cal. Rules of Court, rule 3.1332, subd. (a).) Continuances are disfavored and the Court may only grant a continuance “on an affirmative showing of good cause *requiring* the continuance.” (See *id.* at subd. (c). Emphasis added.)

Defendant presents evidence that an essential witness is unavailable for trial as currently scheduled, and that, despite the parties’ diligence, significant discovery remains to be completed. In light of the fact that the trial has not previously been continued, the Court finds good cause requiring the continuance.

Based on the foregoing, the motion is GRANTED. The parties shall appear prepared to select new trial and related dates.

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Rore Manufacturing, Inc. v. Karen Coffy

26CV000810

DEFENDANT’S SPECIAL MOTION TO STRIKE SLAPP SUIT AND FOR ATTORNEY FEES AND COSTS

TENTATIVE RULING: The Clerk is directed to STRIKE the First Amended Complaint filed July 6, 2026, from the Court’s files. Hearing on the instant Motion is CONTINUED to August 6, 2026, at 8:30 a.m. in Dept. A. Plaintiff Rore Manufacturing, Inc. is granted leave to serve and file, no later than July 24, 2026, a Separate Statement as described below. Defendant Karen Scheuner is granted leave to serve and file, no later than July 30, 2026, a Responsive Separate Statement. To be clear, neither party is granted leave, by this order, to file any additional briefing or evidence in relation to the instant motion.

The moving party failed to include in the notice of this motion proper notice of the Court’s tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of

hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

A. PRELIMINARY MATTERS

1. Nature of Motion

Defendant Karen Scheuner (erroneously sued as Karen Coffy) specially moves, pursuant to California Code of Civil Procedure, section 425.16, for an order to strike the Complaint filed by Plaintiff RORE Manufacturing Inc., dba, Roof and Realm (RORE) in its entirety on grounds that the Complaint is a strategic lawsuit against public policy (SLAPP).

While not addressed in the Notice of Motion, Ms. Scheuner also contends, through the supporting memorandum (Support Memo), that RORE's claims are barred by the statute of limitations and/or the single publication rule of Civil Code section 3425.3. RORE addresses these arguments through its Opposition.

"A general demurrer will lie 'where the complaint has included allegations that clearly disclose some defense or bar to recovery.' [Citation.]." (*Cryolife, Inc. v. Super. Ct.* (2003) 110 Cal.App.4th 1145, 1152.) And "a motion to strike is generally used to reach defects in a pleading which are not subject to demurrer. A motion to strike does not lie to attack a complaint for insufficiency of allegations to justify relief; that is a ground for general demurrer." (*Pierson v. Sharp Mem'l Hosp.* (1989) 216 Cal.App.3d 340, 342 (*Pierson*); see also (Weil & Brown, Cal. Practice Guide – Civ. Pro. Before Trial (Rutter 2026) CH. 7(I)-B, § 7:156 ["Motions to strike can be used to reach defects in or objections to pleadings *that are not challengeable by demurrer*"], and *Allerton v. King* (1929) 96 Cal.App.230, 234 [held: A motion to strike cannot be made to serve the purpose of a special demurrer].)

However, the Court may construe a motion to strike for failure to state a claim as a motion for judgment on the pleadings. [See *Pierson, supra*, 216 Cal.App.3d at 342-343.] The Court, therefore, construes Ms. Scheuner's Motion to Strike on grounds that RORE's claims are barred by the statute of limitations and/or the single publication rule as a Motion for Judgment on the Pleadings.

Finally, because a plaintiff has no right to amend a complaint following a defendant's showing in support of an anti-SLAPP Motion (see *Simmons v. Allstate Ins. Co.* (2001) 92 Cal.App.4th 1068, 1074 (*Simmons*)) the Court defers analysis of the Motion for Judgment on the Pleadings until after resolution of Ms. Scheuner's anti-SLAPP Motion.

2. The Clerk is Ordered to Strike the First Amended Complaint Filed July 6, 2026

Without leave of Court, and after the time for opposing the instant Motion (indeed after filing its Opposition to the instant Motion), RORE filed a First Amended Complaint (FAC).

Generally, "[a] party may amend its pleading once without leave of the court at any time before the answer, demurrer, or motion to strike is filed, or after a demurrer or motion to strike is

filed but before the demurrer or motion to strike is heard if the amended pleading is filed and served no later than the date for filing an opposition to the demurrer or motion to strike.” (Code Civ. Proc., § 472 (Section 472).)

While the instant motion is captioned a “Motion to Strike,” as discussed above, the arguments presented are not a proper subject of a common motion to strike. Thus, there is some question whether RORE’s failure to file the FAC prior to the time for filing its opposition to the instant motion deprives it of the rights conferred by Section 472.

The Court is not required to answer that question, however, because the instant Motion is, in part, an unequivocal Special Motion to Strike a SLAPP. For this reason, as of Defendant’s filing of the instant motion, Plaintiff was without right to amend the Complaint. (See *Salma v. Capon* (2008) 161 Cal.App.4th 1275, 1294 [“Requiring the trial court to analyze the amended claims under section 425.16 simply because the claims were amended before the court ruled on the first motion to strike would cause all of the evils identified in *Simmons* and would undermine the legislative policy of early evaluation and expeditious resolution of claims arising from protected activity”]; see also *Simmons, supra*, 92 Cal.App.4th at 1074 [held: once a defendant makes a prima facie showing in support of an anti-SLAPP Motion, plaintiff has no right to amend the subject complaint].)

Based on the foregoing, the Court finds that the FAC was not filed in conformity with the laws of this state. The Clerk is, therefore, directed to STRIKE the FAC from the Court’s files. (Code Civ. Proc., § 436, subd. (b).)

3. Nature of Claims

It is undisputed that RORE is in the business of designing, fabricating, and delivering so-called accessory dwelling units (ADUs) to end use customers. (See Complaint at ¶ 1.) Ms. Scheuner is a former customer of RORE’s. The gravamen of the Complaint is that RORE has suffered damage as a result of: (1) alleged publications, by Ms. Scheuner, “of multiple damaging and untrue statements about RORE to a Facebook users group dedicated to discussions regarding on social media regarding her purchase and installation of the Home” (Complaint at ¶ 7); and (2) alleged communications, by Ms. Scheuner, of defamatory information (*id.* at ¶ 9.)

B. SPECIAL MOTION TO STRIKE SLAPP

1. Legal Background

“The special motion to strike established in section 425.16 may be used to attack a cause of action if (1) the cause of action arises from ‘any act [by the defendant] in furtherance of the person’s right of petition or free speech under the United States or California Constitution,’ and (2) the defendant was exercising his or her right of free speech ‘in connection with a public issue.’ (Citation.) If the moving defendant establishes those two elements, the burden shifts to the plaintiff to establish there is a probability he or she will prevail on the cause of action.” (*Chabak v. Monroy* (2007) 154 Cal.App.4th 1502, 1511.) “The anti-SLAPP statute’s definitional focus is not the form of the plaintiff’s cause of action but, rather, the defendant’s activity that

gives rise to his or her asserted liability – and whether that activity constitutes protected speech or petitioning.” (*Navellier v. Sletten* (2002) 29 Cal.4th 82, 92 (*Navellier*).)

2. Legal Analysis

a. *The Activity Giving Rise to RORE’s Claim(s) is Protected Activity Under the Statute*

As defined by the anti-SLAPP statute, protected activity includes “any written . . . statement . . . made in a place open to the public or a public forum in connection with an issue of public interest.” (Code Civ. Proc. § 425.16, subd. (e)(3) (Section 425.16).)

The alleged activities that give rise to the asserted liability, and that support RORE’s prayer for declaratory relief, are statements relating to RORE’s business of designing, fabricating and delivering ADUs. (See Complaint at ¶ 7, 11, and 17.) The statements were either published on social media or communicated directly to another of RORE’s customers. (See Complaint at ¶¶ 7, 9-12, 17, 23, 38, and 36.) As RORE concedes, the posts giving rise to its claims were all published “in the private Facebook group ‘How to ADU.’” (Opposition at 2:6-8.) Ms. Scheuner presents evidence that “The Facebook Group . . . has approximately 160,000 members The Facebook Group is purposed for homeowners and ADU-builders ‘to help each other and share questions and answers about building Accessory Dwelling Units in California . . .’” (See Declaration of Karen Scheuner at ¶ 12.) RORE does not dispute or rebut this evidence through its Opposition.

“[R]eviews posted to an Internet website meet [Section 425.16, subd. (e)(3)’s] definition of protected activity.” (*Abir Cohen Treyzon Salo, LLP v. Lahiji* (2019) 40 Cal.App.5th 882, 887-88 (*Lahiji*) [upholding trial court finding that comments posted to a website by a former client regarding quality of a law firm’s services were protected activity]; see also *Chaker v. Mateo* (2012) 209 Cal.App.4th 1138, 1146 (*Chaker*) [“statements posted to the Ripoff Report Web site about [Plaintiff’s] character and business practices plainly fall within in the rubric of consumer information about [Plaintiff’s] business and were intended to serve as a warning to consumers about his trustworthiness”].)

“The public interest requirement of section 425.16, subdivision (e)(3) must be “‘construed broadly” so as to encourage participation by all segments of our society in vigorous public debate related to issues of public interest.’ [Citation.] The Legislature inserted the ‘broad construction’ provision out of concern that judicial decisions were construing that element of the statute too narrowly.” (*Gilbert v. Sykes* (2007) 147 Cal.App.4th 13, 23-24 (*Gilbert*) [held: a public website created by Plaintiff dedicated to the pros and cons of plastic surgery constitutes protected activity under Section 425.16, subdivision (e)(3) where “the Web site was not limited to attacking [plaintiff] but contributed to the general debate over the pros and cons of undergoing cosmetic surgery”].)

The Court finds that, particularly since the passage of SB 477 in 2024, legislation aimed at reducing the local zoning and planning hurdles to the construction of ADUs, subjects relating to the construction thereof are issues of significant public interest.

Based on the foregoing, the Court finds that the statements – allegedly made by Ms. Scheuner – giving rise to RORE’s claim(s) are protected activity pursuant to Section 425.16, subdivision (e)(3).

RORE argues that Ms. Scheuner’s statements are not protected under the holding in *Woodhill Ventures, LLC v. Yang* (2021) 68 Cal.App.5th 624 (*Yang*). In *Yang* a celebrity jeweler posted statements regarding his dissatisfaction with a cake ordered from a local bakery to his social media feed with some 1.5 million followers. (See *id.* at 626-27.) In concluding that Defendant had not made the comments “in connection with an issue of ‘public interest,’” the *Yang* court found that “Yang’s statements did not seek public discussion of anything. They aimed to whip up a crowd for vengeful retribution. They were an unprotected effort ‘to gather ammunition’ in his spat with Big Sugar. The customer was complaining about a cake order. He did not like the cake and he did not like the service. Those were not issues of public interest.” (*Id.* at 632-633.)

Here, by contrast, the alleged statements were made on a social media site dedicated to a matter of public interest, discussion of ADUs in California – the precise business for which RORE holds itself out to the public. The Court finds that these facts distinguish the instant case from *Yang*, and bring it in line with the holdings in *Lahiji* and *Chaker*, cited above.

b. *Given the Complexity of the Claim(s) Alleged, the Court Invites the Parties to Submit Separate Statements*

“[I]n order to establish the requisite probability of prevailing (§ 425.16, subd. (b)(1)), the plaintiff need only have ‘stated and substantiated a legally sufficient claim.’ [Citations.] ‘Put another way, the plaintiff ‘must demonstrate that the complaint is both legally sufficient and supported by a sufficient prima facie showing of facts to sustain a favorable judgment if the evidence submitted by the plaintiff is credited.’ [Citations.]’ (*Navellier, supra*, 29 Cal.4th at 88-89.) “To show a probability of prevailing for purposes of section 425.16, a plaintiff must make a prima facie showing of facts which would, if proved at trial, support a judgment in plaintiff’s favor.” (*Alpha & Omega Dev., LP v. Whillock Contracting, Inc.* (2011) 200 Cal.App.4th 656, 663.) Because the burden on the plaintiff is similar to the standard used in determining motions for summary judgment. “[t]he showing must be made through ‘competent and admissible evidence.’ [Citations.] Thus, declarations that lack foundation or personal knowledge, or that are argumentative, speculative, impermissible opinion, hearsay, or conclusory are to be disregarded.” (*Gilbert, supra*, 147 Cal.App.4th at 26.)

While the Complaint purports to assert four causes of action, “[t]he violation of one primary right constitutes a single cause of action, though it may entitle the injured party to many forms of relief, and the relief is not to be confounded with the cause of action, one not being determinative of the other.” (*Wulfjen v. Dolton* (1944) 24 Cal.2d 891, 895-96.) “We explained in *Crowley v. Katleman* (1994) 8 Cal.4th 666, 681: ‘[A] “cause of action” is comprised of a “primary right” of the plaintiff, a corresponding “primary duty” of the defendant, and a wrongful act by the defendant constituting a breach of that duty. [Citation.] The most salient characteristic of a primary right is that it is indivisible: the violation of a single primary right gives rise to but a

single cause of action. [Citation.]’ Although ‘the phrase “causes of action” is often used indiscriminately . . . to mean counts which state differently the same cause of action . . . ’ (*Eichler Homes of San Mateo, Inc. v. Super. Ct.* (1961) 55 Cal.2d 845, 847–848), its more precise meaning ‘is the right to obtain redress for a harm suffered’ (*Boeken v. Philip Morris USA, Inc.* (2010) 48 Cal.4th 788, 798). “Even where there are multiple legal theories upon which recovery might be predicated, one injury gives rise to only one claim for relief.” (*Ibid.*, quoting *Slater v. Blackwood* (1975) 15 Cal.3d 791, 795, italics added.)” (*Hayes v. County of San Diego* (2013) 57 Cal.4th 622, 630-631.)

RORE asserts its counts under theories of Defamation – Trade Libel / Business Disparagement, and Intentional and Negligent Interference with Prospective Economic Relations. RORE also seeks Declaratory Relief regarding Ms. Scheuner’s right to continue publishing and communicating negative content about RORE.

RORE further represents that its first count is pled under a Trade Libel theory for which a two-year statute of limitations applies, and not a traditional Defamation theory, for which a one-year limitations period applies. (See Opposition at 3:14-256.) “With respect to the choice between the one-year period of section 340, subdivision (3), and the two-year period of section 339, subdivision 1, ‘[the] principle of selection which has emerged is that the one-year period applies to all alleged infringements of personal rights, whereas the two-year period applies only to alleged infringements of property rights. [Citations.]” (*Guess, Inc. v. Super. Ct.* (1986) 176 Cal.App.3d 473, 478.) “Whereas defamation concerns injury to the reputation of a person or business, trade libel involves false disparagement of the quality of goods or services.” (*Mann v. Quality Old Time Service, Inc.* (2006) 139 Cal.App.4th 328, 340.)

Unfortunately, RORE, through the Opposition fails to identify or discuss the elements of any of its counts. Similarly, RORE fails to cite to the Complaint or to explain where each element of its counts is alleged in order to “demonstrate that the complaint is . . . legally sufficient . . .” (*Navellier, supra*, 29 Cal.4th at 88-89.) More importantly, while RORE submits evidence that it contends is sufficient to make a *prima facie* showing on its counts, it fails to discuss how each element is satisfied based on pin-citation to specific evidence. Rather, RORE simply points to a host of statements posted to the Facebook group, contends they were made by Ms. Scheuner based on citation to *other* statements, and then points to statements allegedly made by third parties to the litigation to show damages. Based on the foregoing, the Court finds that RORE’s citation to its evidence is insufficient to permit the Court to conclude that there is a reasonable probability that it will prevail on its claim(s).

The instant analysis is rendered significantly complex by a number of aspects of the claims and the evidence: (1) the number of elements for each of the counts pled in the Complaint (See CACI Nos. 1731, 2202, and 2204); (2) the distinction between defamation and trade libel (discussed above); (3) the number of statements attributed to “Anonymous” in the screenshot(s) attached as Exhibit G to the Declaration of Fatima Shahid; (4) the apparent fact that more than one person was responsible for posts attributed to “Anonymous” in the screen shot submitted as evidence; and (5) the requirement that a plaintiff make a *prima facie* showing that its damages were caused by the libelous statements / wrongful acts.

The Court specifically notes that a significant number of the posted statements relied upon by RORE appear to support a claim for defamation rather than trade libel; that is, they appear to “concern[] injury to the reputation of a person or business,” rather than “false disparagement of the quality of goods or services.” (*Mann v. Quality Old Time Service, Inc.*, *supra*, 139 Cal.App.4th at 340.) In this context, RORE fails to provide any discussion regarding how its evidence of damages relates to any individual statement allegedly made by Ms. Scheuner. This direct causation appears to be necessary, however, in light of RORE’s representations that it is not proceeding under a defamation theory of liability, and the defamatory nature of a number of the statements that it relies on.

It is not the Court’s obligation to comb through the evidence presented and attempt to deduce how it supports the counts asserted vis-à-vis the allegations in the Complaint. (See *Quantum Cooking Concepts, Inc. v. LV Associates, Inc.* (2011) 197 Cal. App. 4th 927, 934 [“Rules of Court rule 3.1113 rests on a policy-based allocation of resources, preventing the trial court from being cast as a tacit advocate for the moving party’s theories by freeing it from any obligation to comb the record and the law for factual and legal support that a party has failed to identify or provide”].)

However, the Court is mindful of the consequence of ruling in favor of Ms. Scheuner on the instant motion in light of the caselaw providing that once a defendant makes a prima facie showing in support of an anti-SLAPP Motion, plaintiff has no right to amend the subject complaint to attempt to state a good cause of action. (See *Simmons v. Allstate Ins. Co.*, *supra*, 92 Cal.App.4th 1068, 1074.)

In this context, the Court notes the holding in *Parkview Villas Assn, Inc. v. State Farm Fire & Casualty Co.* (2005) 133 Cal.App.4th 1197 (*Parkview Villas*) in the context of summary judgment. “[I]n the absence of extraordinary circumstances . . . a trial court faced with an opposing party’s defective separate statement plainly indicating which proposed material facts are disputed and including at least general references to the evidence supporting its position does not have the discretion to enter a judgment against that party solely as a result of that party’s failure to explain the nature of the dispute and to provide sufficiently specific citations to the evidence supporting its position.” (*Id.* at 1214-1215.) In light of the *Parkview Villas* holding and in an abundance of respect for the general policy that the Court seek to avoid entering judgment against a plaintiff on a curable procedural defect, the Court feels compelled to grant RORE leave to attempt to cure the deficiencies in its presentation of argument and citation to evidence on file with the Court. However, the leave granted hereby is strictly limited as follows.

RORE may, no later than July 24, 2026, file and serve a separate statement in support of its Opposition to the instant Motion. RORE is encouraged to consider the formatting requirements of Rules of Court, rule 3.1350, but need not specifically comply therewith. RORE need not include undisputed material facts. However, RORE should organize the statement by count (cause of action) and must identify each element of each count/legal theory advanced. For each such element, RORE should identify, by pin-cite, supporting allegations of the Complaint *and* the evidence that RORE contends makes a prima facie showing. Where two or more counts have one or more elements in common, RORE need not “copy and paste” the same citations and

discussions into subsequent sections of the statement, but may instead simply refer to them by, for example, “See Discussion at P:L-L, above.”

Ms. Scheuner may, no later than July 30, 2026, file and serve a responsive separate statement. Because the Court does not weigh the evidence on an anti-SLAPP Motion, the responsive separate statement should be limited to citing evidence, if any, that Ms. Scheuner contends negates RORE’s purported showing as a matter of law.

PROBATE CALENDAR – Hon. Joseph J. Solga, Dept. B (Historic Courthouse) at 8:30 a.m.

Estate of Jo Ellen Francis

25PR000061

FIRST ACCOUNT AND REPORT OF STATUS; PETITION TO CONTINUE
ADMINISTRATION OF ESTATE; AND FOR APPOINTMENT OF SUCCESSOR TRUSTEE
TO DECEDENT’S TRUST

TENTATIVE RULING: The Petition is GRANTED. The matter is set for a Status Hearing Re: Final Distribution on July 15, 2027, at 8:30 a.m. in Dept. B.

The petition to appoint successor trustee is GRANTED.

CIVIL LAW & MOTION CALENDAR – Hon. Joseph J. Solga, Dept. B (Historic Courthouse) at 8:30 a.m.

**Integon National Insurance Company v. Andrew Madison
Mackenzie-Davis et al**

26CV000413

DEFENDANT BRYSON HALL’S DEMURRER TO PLAINTIFF’S COMPLAINT

TENTATIVE RULING: The demurrer is OVERRULED. Hall is granted 10 days’ leave to answer the Complaint. (See Rules of Court, rule 3.1320(g).)

The moving party failed to include in the notice of this motion proper notice of the Court’s tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

A. PROCEDURAL MATTER